

NGUYEN FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2415
(Reference to JUDICIARY Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{[Orange lowercase strikeout in double curly brackets]}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~<<Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-3401, Arizona Revised Statutes, is amended to
3 read:

4 13-3401. Definitions

5 In this chapter, unless the context otherwise requires:

6 1. "Administer" means to apply, inject or facilitate the inhalation
7 or ingestion of a substance to the body of a person.

8 2. "Amidone" means any substance identified chemically as
9 (4-4-diphenyl-6-dimethylamine-heptanone-3), or any salt of such substance,
10 by whatever trade name designated.

11 3. "Board" means the Arizona state board of pharmacy.

12 4. "Cannabis" means the following substances under whatever names
13 they may be designated:

14 (a) The resin extracted from any part of a plant of the genus
15 cannabis, and every compound, manufacture, salt, derivative, mixture or
16 preparation of such plant, its seeds or its resin. Cannabis does not

1 include oil or cake made from the seeds of such plant, any fiber,
2 compound, manufacture, salt, derivative, mixture or preparation of the
3 mature stalks of such plant except the resin extracted from the stalks or
4 any fiber, oil or cake or the sterilized seed of such plant which is
5 incapable of germination.

6 (b) Every compound, manufacture, salt, derivative, mixture or
7 preparation of such resin or tetrahydrocannabinol.

8 5. "Coca leaves" means cocaine, its optical isomers and any
9 compound, manufacture, salt, derivative, mixture or preparation of coca
10 leaves, except derivatives of coca leaves which do not contain cocaine,
11 ecgonine or substances from which cocaine or ecgonine may be synthesized
12 or made.

13 6. "Dangerous drug" means the following by whatever official,
14 common, usual, chemical or trade name designated:

15 (a) Any material, compound, mixture or preparation that contains
16 any quantity of the following hallucinogenic substances and their salts,
17 isomers, whether optical, positional or geometric, and salts of isomers,
18 unless specifically excepted, whenever the existence of such salts,
19 isomers and salts of isomers is possible within the specific chemical
20 designation:

- 21 (i) Alpha-ethyltryptamine.
- 22 (ii) Alpha-methyltryptamine.
- 23 (iii) (2-aminopropyl) benzofuran (APB).
- 24 (iv) (2-aminopropyl)-2, 3-dihydrobenzofuran (APDB).
- 25 (v) Aminorex.
- 26 (vi) 4-bromo-2, 5-dimethoxyphenethylamine.
- 27 (vii) 4-bromo-2, 5-dimethoxyamphetamine.
- 28 (viii) Bufotenine.
- 29 (ix) [3-(3-carbamoylphenyl)phenyl]N-cyclohexyl carbamate (URB-597).
- 30 (x) Diethyltryptamine.
- 31 (xi) 2, 5-dimethoxyamphetamine.
- 32 (xii) Dimethyltryptamine.
- 33 (xiii) (2-ethylaminopropyl)-benzofuran (EAPB).
- 34 (xiv) 5-methoxy-alpha-methyltryptamine.
- 35 (xv) 5-methoxy-3, 4-methylenedioxyamphetamine.
- 36 (xvi) 4-methyl-2, 5-dimethoxyamphetamine.
- 37 (xvii) (2-methylaminopropyl)-benzofuran (MAPB).
- 38 (xviii) Ibogaine.
- 39 (xix) Lysergic acid amide.
- 40 (xx) Lysergic acid diethylamide.
- 41 (xxi) Mescaline.
- 42 (xxii) 4-methoxyamphetamine.
- 43 (xxiii) Methoxymethylenedioxyamphetamine (MMDA).
- 44 (xxiv) Methylenedioxyamphetamine (MDA).
- 45 (xxv) 3, 4-methylenedioxymethamphetamine.
- 46 (xxvi) 3, 4-methylenedioxy-N-ethylamphetamine.
- 47 (xxvii) N-ethyl-3-piperidyl benzilate (JB-318).
- 48 (xxviii) N-hydroxy-3, 4-methylenedioxyamphetamine.
- 49 (xxix) N-methyl-3-piperidyl benzilate (JB-336).

1 (xxx) N-methyltryptamine mimetic substances that are any substances
2 derived from N-methyltryptamine by any substitution at the nitrogen, any
3 substitution at the indole ring, any substitution at the alpha carbon, any
4 substitution at the beta carbon or any combination of the above.
5 N-methyltryptamine mimetic substances do not include melatonin
6 (5-methoxy n-acetyltryptamine). Substances in the N-methyltryptamine
7 generic definition include AcO-DMT, Baeocystine, Bromo-DALT, DiPT, DMT,
8 DPT, HO-DET, HO-DiPT, HO-DMT, HO-DPT, HO-MET, MeO-DALT, MeO-DET, MeO-DiPT,
9 MeO-DMT, MeO-DPT, MeO-NMT, MET, NMT and Norbufotenin.

10 (xxxi) N-(1-phenylcyclohexyl) ethylamine (PCE).
11 (xxxii) Nabilone.
12 (xxxiii) 1-(1-phenylcyclohexyl) pyrrolidine (PHP).
13 (xxxiv) 1-(1-(2-thienyl)-cyclohexyl) piperidine (TCP).
14 (xxxv) 1-(1-(2-thienyl)-cyclohexyl) pyrrolidine.
15 (xxxvi) Para-methoxyamphetamine (PMA).
16 (xxxvii) Psilacetin.
17 (xxxviii) Psilocybin.
18 (xxxix) Psilocyn.
19 (xl) Synhexyl.
20 (xli) Trifluoromethylphenylpiperazine (TFMPP).
21 (xlii) Trimethoxyamphetamine (TMA).
22 (xliii) 1-pentyl-3-(naphthoyl)indole (JWH-018 and isomers).
23 (xliv) 1-butyl-3-(naphthoyl)indole (JWH-073 and isomers).
24 (xlv) 1-hexyl-3-(naphthoyl)indole (JWH-019 and isomers).
25 (xlvi) 1-pentyl-3-(4-chloro naphthoyl)indole (JWH-398 and isomers).
26 (xlvii) 1-(2-(4-(morpholinyl)ethyl))-3-(naphthoyl)indole (JWH-200
27 and isomers).
28 (xlviii) 1-pentyl-3-(methoxyphenylacetyl)indole (JWH-250 and
29 isomers).
30 (xlix) (2-methyl-1-propyl-1H-indol-3-yl)-1-naphthalenyl-methanone
31 (JWH-015 and isomers).
32 (l) (6AR, 10AR)-9-(hydroxymethyl)-6,6-dimethyl-3-(2-methyloctan-2-yl)-
33 -6a,7,10,10a-tetrahydrobenzo[c]chromen-1-ol (HU-210).
34 (li) 5-(1,1-dimethylheptyl)-2-(3-hydroxycyclohexyl)-phenol
35 (CP 47,497 and isomers).
36 (lii) 5-(1,1-dimethyloctyl)-2-(3-hydroxycyclohexyl)-phenol
37 (cannabicyclohexanol, CP-47,497 C8 homologue and isomers).
38 (liii) Xylazine.

39 (b) Any material, compound, mixture or preparation that contains
40 any quantity of cannabimimetic substances and their salts, isomers,
41 whether optical, positional or geometric, and salts of isomers, unless
42 specifically excepted, whenever the existence of such salts, isomers and
43 salts of isomers is possible within the specific chemical designation. For
44 the purposes of this subdivision, "cannabimimetic substances" means any
45 substances within the following structural classes:
46 (i) 2-(3-hydroxycyclohexyl)phenol with substitution at the
47 5-position of the phenolic ring by alkyl or alkenyl, whether or not
48 substituted on the cyclohexyl ring to any extent. Substances in the

1 2-(3-hydroxycyclohexyl)phenol generic definition include CP-47,497,
2 CP-47,497 C8-Homolog, CP-55,940 and CP-56,667.

3 (ii) 3-(naphthoyl)indole or 3-(naphthylmethane)indole by
4 substitution at the nitrogen atom of the indole ring, whether or not
5 further substituted on the indole ring to any extent, whether or not
6 substituted on the naphthoyl or naphthyl ring to any extent. Substances in
7 the 3-(naphthoyl)indole generic definition include AM-678, AM-2201,
8 JWH-004, JWH-007, JWH-009, JWH-015, JWH-016, JWH-018, JWH-019, JWH-020,
9 JWH-046, JWH-047, JWH-048, JWH-049, JWH-050, JWH-070, JWH-071, JWH-072,
10 JWH-073, JWH-076, JWH-079, JWH-080, JWH-081, JWH-082, JWH-094, JWH-096,
11 JWH-098, JWH-116, JWH-120, JWH-122, JWH-148, JWH-149, JWH-175, JWH-180,
12 JWH-181, JWH-182, JWH-184, JWH-185, JWH-189, JWH-192, JWH-193, JWH-194,
13 JWH-195, JWH-196, JWH-197, JWH-199, JWH-200, JWH-210, JWH-211, JWH-212,
14 JWH-213, JWH-234, JWH-235, JWH-236, JWH-239, JWH-240, JWH-241, JWH-242,
15 JWH-262, JWH-386, JWH-387, JWH-394, JWH-395, JWH-397, JWH-398, JWH-399,
16 JWH-400, JWH-412, JWH-413, JWH-414 and JWH-415.

17 (iii) 3-naphthoyl-indazole or 3-(naphthylmethane)-indazole by
18 substitution at one or both of the nitrogen atoms of the indazole ring,
19 whether or not further substituted on the indazole ring to any extent,
20 whether or not substituted on the naphthoyl ring to any extent. Substances
21 in the 3-naphthoyl-indazole or 3-(naphthylmethane)-indazole generic
22 definition include THJ2201 and THJ-018.

23 (iv) 3-(naphthoyl)pyrrole by substitution at the nitrogen atom of
24 the pyrrole ring, whether or not further substituted in the pyrrole ring
25 to any extent, whether or not substituted on the naphthoyl ring to any
26 extent. Substances in the 3-(naphthoyl)pyrrole generic definition include
27 JWH-030, JWH-145, JWH-146, JWH-147, JWH-150, JWH-156, JWH-243, JWH-244,
28 JWH-245, JWH-246, JWH-292, JWH-293, JWH-307, JWH-308, JWH-346, JWH-348,
29 JWH-363, JWH-364, JWH-365, JWH-367, JWH-368, JWH-369, JWH-370, JWH-371,
30 JWH-373 and JWH-392.

31 (v) 1-(naphthylmethylene)indene by substitution of the 3-position
32 of the indene ring, whether or not further substituted in the indene ring
33 to any extent, whether or not substituted on the naphthyl ring to any
34 extent. Substances in the 1-(naphthylmethylene)indene generic definition
35 include JWH-176.

36 (vi) 3-(phenylacetyl)indole or 3-(benzoyl)indole by substitution at
37 the nitrogen atom of the indole ring, whether or not further substituted
38 in the indole ring to any extent, whether or not substituted on the phenyl
39 ring to any extent. Substances in the 3-(phenylacetyl)indole generic
40 definition include AM-694, AM-2233, JWH-167, JWH-201, JWH-202, JWH-203,
41 JWH-204, JWH-205, JWH-206, JWH-207, JWH-208, JWH-209, JWH-237, JWH-248,
42 JWH-250, JWH-251, JWH-253, JWH-302, JWH-303, JWH-304, JWH-305, JWH-306,
43 JWH-311, JWH-312, JWH-313, JWH-314, JWH-315, JWH-316, RCS-4, RCS-8, SR-18
44 and SR-19.

45 (vii) 3-(cyclopropylmethanone) indole or 3-(cyclobutylmethanone)
46 indole or 3-(cyclopentylmethanone) indole by substitution at the nitrogen
47 atom of the indole ring, whether or not further substituted in the indole
48 ring to any extent, whether or not substituted on the cyclopropyl,
49 cyclobutyl or cyclopentyl rings to any extent. Substances in the

1 3-(cyclopropylmethanone) indole generic definition include UR-144,
2 fluoro-UR-144 and XLR-11.

3 (viii) 3-adamantoylindole with substitution at the nitrogen atom of
4 the indole ring, whether or not further substituted on the indole ring to
5 any extent, whether or not substituted on the adamantyl ring to any
6 extent. Substances in the 3-adamantoylindole generic definition include
7 AB-001.

8 (ix) N-(adamantyl)-indole-3-carboxamide with substitution at the
9 nitrogen atom of the indole ring, whether or not further substituted on
10 the indole ring to any extent, whether or not substituted on the adamantyl
11 ring to any extent. Substances in the N-(adamantyl)-indole-3-carboxamide
12 generic definition include SDB-001.

13 (x) Indole-3-carboxamide or indazole-3-carboxamide with
14 substitution at the nitrogen atom of the indole ring or by substitution at
15 one or both of the nitrogen atoms of the indazole ring, whether or not
16 further substituted on the indole ring or the indazole ring to any extent,
17 whether or not substituted on the nitrogen of the carboxamide to any
18 extent. Substances in the indole-3-carboxamide or indazole-3-carboxamide
19 generic definition include AKB-48, fluoro-AKB-48, APINACA, AB-PINACA,
20 AB-FUBINACA, ABICA and ADBICA.

21 (xi) 8-Quinolinylnl-indole-3-carboxylate or 8-quinolinylnl-indazole-3-
22 carboxylate by substitution at the nitrogen atom of the indole ring or by
23 substitution at one or both of the nitrogen atoms of the indazole ring,
24 whether or not further substituted in the indole ring or indazole ring to
25 any extent, whether or not substituted on the quinoline ring to any
26 extent. Substances in the 8-quinolinylnl-indole-3-carboxylate or the
27 8-quinolinylnl-indazole-3-carboxylate generic definition include PB-22,
28 fluoro-PB-22, NPB-22 and fluoro-NPB-22.

29 (xii) Naphthalenyl-indole-3-carboxylate or naphthalenyl-indazole-3-
30 carboxylate by substitution at the nitrogen atom of the indole ring or by
31 substitution at one or both of the nitrogen atoms of the indazole ring,
32 whether or not further substituted in the indole or indazole ring to any
33 extent, whether or not substituted on the naphthalenyl ring to any extent.
34 Substances in the naphthalenyl-indole-3-carboxylate or
35 naphthalenyl-indazole-3-carboxylate generic definition include NM2201,
36 FDU-PB-22, SDB-005 and fluoro SDB-005.

37 (c) Any material, compound, mixture or preparation that contains
38 any quantity of the following substances and their salts, isomers, whether
39 optical, positional or geometric, and salts of isomers having a potential
40 for abuse associated with a stimulant effect on the central nervous
41 system:

42 (i) Alpha-pyrrolidinobutiophenone (Alpha-PBP).

43 (ii) Alpha-pyrrolidinopropiophenone (Alpha-PPP).

44 (iii) Alpha-pyrrolidinovalerophenone (Alpha-PVP).

45 (iv) Alpha-pyrrolidinovalerothiophenone (Alpha-PVT).

46 (v) Aminoindane mimetic substances that are derived from
47 aminoindane by any substitution at the indane ring, replacement of the
48 amino group with another N group or any combination of the above.

- 1 Substances in the aminoindane generic definition include MDAI, MMAI, IAI
2 and AMMI.
- 3 (vi) Amphetamine.
4 (vii) Benzphetamine.
5 (viii) Benzylpiperazine (BZP).
6 (ix) Beta-keto-n-methylbenzodioxolylbutanamine (Butylone).
7 (x) Beta-keto-n-methylbenzodioxolylpentanamine (Pentylone).
8 (xi) Butorphanol.
9 (xii) Cathine ((+)-norpseudoephedrine).
10 (xiii) Cathinomimetic substances that are any substances derived
11 from cathinone, (2-amino-1-phenyl-1-propanone) by any substitution at the
12 phenyl ring, any substitution at the 3 position, any substitution at the
13 nitrogen atom or any combination of the above substitutions.
- 14 (xiv) Cathinone.
15 (xv) 2-(4-Chloro-2,5-dimethoxyphenyl)ethanamine (2C-C).
16 (xvi) Chlorphentermine.
17 (xvii) Clortermine.
18 (xviii) Diethylpropion.
19 (xix) Dihydro-5H-indeno-(5,6-d)-1,3-dioxol-6-amine) (MDAI).
20 (xx) 2-(2,5-Dimethoxy-4-ethylphenyl)ethanamine (2C-E).
21 (xxi) 2-(2,5-Dimethoxy-4-methylphenyl)ethanamine (2C-D).
22 (xxii) 2-(2,5-Dimethoxy-4-nitro-phenyl)ethanamine (2C-N).
23 (xxiii) 2-(2,5-Dimethoxy-4-(n)-propylphenyl)ethanamine (2C-P).
24 (xxiv) 2-(2,5-Dimethoxyphenyl)ethanamine (2C-H).
25 (xxv) Dimethylcathinone (Metamfepramone).
26 (xxvi) Ethcathinone.
27 (xxvii) 2-[4-(Ethylthio)-2,5-dimethoxyphenyl]ethanamine (2C-T-2).
28 (xxviii) Fencamfamin.
29 (xxix) Fenethylamine.
30 (xxx) Fenproporex.
31 (xxxi) Fluoroamphetamine.
32 (xxxii) Fluoromethamphetamine.
33 (xxxiii) Fluoromethcathinone.
34 (xxxiv) 2-(4-Iodo-2,5-dimethoxyphenyl)ethanamine (2C-I).
35 (xxxv) 2-[4-(Isopropylthio)-2,5-dimethoxyphenyl]ethanamine(2C-T-4).
36 (xxxvi) Mazindol.
37 (xxxvii) Mefenorex.
38 (xxxviii) Methamphetamine.
39 (xxxix) Methcathinone.
40 (xl) Methiopropamine.
41 (xli) Methoxy-alpha-pyrrolidinopropiophenone (MOPPP).
42 (xlii) Methoxymethcathinone (methedrone).
43 (xliii) Methoxyphenethylamine mimetic substances that are any
44 substances derived from 2, 5-dimethoxy-phenethylamine by any substitution
45 at the phenyl ring, any substitution at the nitrogen atom, any
46 substitutions at the carbon atoms of the ethylamine, or any combination of
47 the above substitutions.
- 48 (xliv) 4-methylaminorex.
49 (xlv) Methyl-a-pyrrolidinobutiophenone (MPBP).

- 1 (xlvi) Methylenedioxy- α -pyrrolidinopropiophenone (MDPPP).
- 2 (xlvii) Methylenedioxyethcathinone (Ethylone).
- 3 (xlviii) Methylenedioxymethcathinone (Methylone).
- 4 (xlix) Methylenedioxypyrovalerone (MDPV).
- 5 (l) Methylmethcathinone (Mephedrone).
- 6 (li) Methylphenidate.
- 7 (lii) Modafinil.
- 8 (liii) Naphthylpyrovalerone (Naphyrone).
- 9 (liv) N-ethylamphetamine.
- 10 (lv) N, N-dimethylamphetamine.
- 11 (lvi) Pemoline.
- 12 (lvii) Phendimetrazine.
- 13 (lviii) Phenmetrazine.
- 14 (lix) Phentermine.
- 15 (lx) Pipradol.
- 16 (lxi) Propylhexedrine.
- 17 (lxii) Pyrovalerone.
- 18 (lxiii) Sibutramine.
- 19 (lxiv) Spa ((-)-1-dimethylamino-1,2-diphenylethane).
- 20 (d) Any material, compound, mixture or preparation that contains
- 21 any quantity of the following substances having a potential for abuse
- 22 associated with a depressant effect on the central nervous system:
- 23 (i) Any substance which contains any quantity of a derivative of
- 24 barbituric acid, or any salt of a derivative of barbituric acid, unless
- 25 specifically excepted.
- 26 (ii) Alprazolam.
- 27 (iii) Bromazepam.
- 28 (iv) Camazepam.
- 29 (v) Carisoprodol.
- 30 (vi) Chloral betaine.
- 31 (vii) Chloral hydrate.
- 32 (viii) Chlordiazepoxide.
- 33 (ix) Chlorhexadol.
- 34 (x) Clobazam.
- 35 (xi) Clonazepam.
- 36 (xii) Clorazepate.
- 37 (xiii) Clotiazepam.
- 38 (xiv) Cloxazolam.
- 39 (xv) Delorazepam.
- 40 (xvi) Diazepam.
- 41 (xvii) Dichloralphenazone.
- 42 (xviii) Estazolam.
- 43 (xix) Ethchlorvynol.
- 44 (xx) Ethinamate.
- 45 (xxi) Ethyl loflazepate.
- 46 (xxii) Etizolam.
- 47 (xxiii) Fenfluramine.
- 48 (xxiv) Fludiazepam.
- 49 (xxv) Flunitrazepam.

- 1 (xxvi) Flurazepam.
- 2 (xxvii) Gamma hydroxy butyrate.
- 3 (xxviii) Glutethimide.
- 4 (xxix) Halazepam.
- 5 (xxx) Haloxazolam.
- 6 (xxxi) Hydroxyphencyclidine (HO-PCP).
- 7 (xxxii) Ketamine.
- 8 (xxxiii) Ketazolam.
- 9 (xxxiv) Loprazolam.
- 10 (xxxv) Lorazepam.
- 11 (xxxvi) Lormetazepam.
- 12 (xxxvii) Lysergic acid.
- 13 (xxxviii) Mebutamate.
- 14 (xxxix) Mecloqualone.
- 15 (xl) Medazepam.
- 16 (xli) Meprobamate.
- 17 (xlii) Methaqualone.
- 18 (xliii) Methohexital.
- 19 (xliv) 2-(methoxyphenyl)-2-(ethylamino)cyclohexanone
- 20 (Methoxetamine).
- 21 (xlv) 2-(methoxyphenyl)-2-(methylamino)cyclohexanone
- 22 (Methoxyketamine).
- 23 (xlvi) Methoxyphencyclidine(MeO-PCP).
- 24 (xlvii) Methypylon.
- 25 (xlviii) Midazolam.
- 26 (xlix) Nimetazepam.
- 27 (l) Nitrazepam.
- 28 (li) Nordiazepam.
- 29 (lii) Oxazepam.
- 30 (liii) Oxazolam.
- 31 (liv) Paraldehyde.
- 32 (lv) Petrichloral.
- 33 (lvi) Phencyclidine (PCP).
- 34 (lvii) Phencyclidine mimetic substances that are any substances
- 35 derived from phenylcyclohexylpiperidine by any substitution at the phenyl
- 36 ring, any substitution at the piperidine ring, any substitution at the
- 37 cyclohexyl ring, any replacement of the phenyl ring or any combination of
- 38 the above. Substances in the phenylcyclohexylpiperidine generic
- 39 definition include Amino-PCP, BCP, Bromo-PCP, BTCP, Chloro-PCP,
- 40 Fluoro-PCP, HO-PCP, MeO-PCP, Methyl-PCP, Nitro-PCP, Oxo-PCP, PCE, PCM,
- 41 PCPY, TCP and TCPY.
- 42 (lviii) Pinazepam.
- 43 (lix) Prazepam.
- 44 (lx) Scopolamine.
- 45 (lxi) Sulfondiethylmethane.
- 46 (lxii) Sulfonethylmethane.
- 47 (lxiii) Sulfonmethane.
- 48 (lxiv) Quazepam.
- 49 (lxv) Temazepam.

- 1 (lxvi) Tetrazepam.
2 (lxvii) Tiletamine.
3 (lxviii) Triazolam.
4 (lxix) Zaleplon.
5 (lxx) Zolazepam.
6 (lxxi) Zolpidem.
7 (lxxii) Zopiclone.
8 (e) Any material, compound, mixture or preparation that contains
9 any quantity of the following anabolic steroids and their salts, isomers
10 or esters:
11 (i) Boldenone.
12 (ii) Clostebol (4-chlorotestosterone).
13 (iii) Dehydrochloromethyltestosterone.
14 (iv) Drostanolone.
15 (v) Ethylestrenol.
16 (vi) Fluoxymesterone.
17 (vii) Formebolone (formebolone).
18 (viii) Mesterolone.
19 (ix) Methandriol.
20 (x) Methandrostenolone (methandienone).
21 (xi) Methenolone.
22 (xii) Methyltestosterone.
23 (xiii) Mibolerone.
24 (xiv) Nandrolone.
25 (xv) Norethandrolon.
26 (xvi) Oxandrolone.
27 (xvii) Oxymesterone.
28 (xviii) Oxymetholone.
29 (xix) Stanolone (4-dihydrotestosterone).
30 (xx) Stanozolol.
31 (xxi) Testolactone.
32 (xxii) Testosterone.
33 (xxiii) Trenbolone.
34 7. "Deliver" means the actual, constructive or attempted exchange
35 from one person to another, whether or not there is an agency
36 relationship.
37 8. "Director" means the director of the department of health
38 services.
39 9. "Dispense" means distribute, leave with, give away, dispose of
40 or deliver.
41 10. "Drug court program" means a program that is established
42 pursuant to section 13-3422 by the presiding judge of the superior court
43 in cooperation with the county attorney in a county for the purpose of
44 prosecuting, adjudicating and treating drug dependent persons who meet the
45 criteria and guidelines for entry into the program that are developed and
46 agreed on by the presiding judge and the prosecutor.

1 11. "Drug dependent person" means a person who is using a substance
2 that is listed in paragraph 6, 19, 20, 21 or 28 of this section and who is
3 in a state of psychological or physical dependence, or both, arising from
4 the use of that substance.

5 12. "Federal act" has the same meaning prescribed in section
6 32-1901.

7 13. "Isoamidone" means any substance identified chemically as
8 (4-4-diphenyl-5-methyl-6-dimethylaminohexanone-3), or any salt of such
9 substance, by whatever trade name designated.

10 14. "Isonipecaïne" means any substance identified chemically as
11 (1-methyl-4-phenyl-piperidine-4-carboxylic acid ethyl ester), or any salt
12 of such substance, by whatever trade name designated.

13 15. "Ketobemidone" means any substance identified chemically as
14 (4-(3-hydroxyphenyl)-1-methyl-4-piperidylethyl ketone hydrochloride), or
15 any salt of such substance, by whatever trade name designated.

16 16. "Licensed" or "permitted" means authorized by the laws of this
17 state to do certain things.

18 17. "Manufacture" means produce, prepare, propagate, compound, mix
19 or process, directly or indirectly, by extraction from substances of
20 natural origin or independently by means of chemical synthesis, or by a
21 combination of extraction and chemical synthesis. Manufacture includes
22 any packaging or repackaging or labeling or relabeling of containers.
23 Manufacture does not include any producing, preparing, propagating,
24 compounding, mixing, processing, packaging or labeling done in conformity
25 with applicable state and local laws and rules by a licensed practitioner
26 incident to and in the course of his licensed practice.

27 18. "Manufacturer" means a person who manufactures a narcotic or
28 dangerous drug or other substance controlled by this chapter.

29 19. "Marijuana" means all parts of any plant of the genus cannabis,
30 from which the resin has not been extracted, whether growing or not, and
31 the seeds of such plant. Marijuana does not include the mature stalks of
32 such plant or the sterilized seed of such plant which is incapable of
33 germination.

34 20. "Narcotic drugs" means the following, whether of natural or
35 synthetic origin and any substance neither chemically nor physically
36 distinguishable from them:

- 37 (a) Acetyl-alpha-methylfentanyl.
- 38 (b) Acetylmethadol.
- 39 (c) Alfentanil.
- 40 (d) Allylprodine.
- 41 (e) Alphacetylmethadol.
- 42 (f) Alphameprodine.
- 43 (g) Alphamethadol.
- 44 (h) Alpha-methylfentanyl.
- 45 (i) Alpha-methylthiofentanyl.
- 46 (j) Alphaprodine.
- 47 (k) Amidone (methadone).
- 48 (l) Anileridine.
- 49 (m) Benzethidine.

- 1 (n) Benzylfentanyl.
- 2 (o) Betacetylmethadol.
- 3 (p) Beta-hydroxyfentanyl.
- 4 (q) Beta-hydroxy-3-methylfentanyl.
- 5 (r) Betameprodine.
- 6 (s) Betamethadol.
- 7 (t) Betaprodine.
- 8 (u) Bezitramide.
- 9 (v) Buprenorphine and its salts.
- 10 (w) Butonitazene.
- 11 (x) Cannabis.
- 12 (y) Carfentanil.
- 13 (z) 4-chloro-n-[-1-[2-(4-nitrophenyl)ethyl]-2-piperidinyldene]benz
- 14 enesulfonamide (W-18).
- 15 (aa) 4-chloro-n-[1-(2-phenylethyl)-2-piperidinyldene]
- 16 benzenesulfonamide (W-15).
- 17 (bb) Clonitazene.
- 18 (cc) Coca leaves.
- 19 (dd) 1-cyclohexyl-4-(1,2-diphenylethyl)piperazine (MT-45).
- 20 (ee) Dextromoramide.
- 21 (ff) Dextropropoxyphene.
- 22 (gg) Diampromide.
- 23 (hh) 3,4-dichloro-n-(-[1-(dimethylamino)cyclohexyl]methyl)-benzamid
- 24 e (AH-7921).
- 25 (ii) 3,4-dichloro-n-[2-(dimethylamino)cyclohexyl]-N-methylbenzamide
- 26 (U-47700).
- 27 (jj) Diethylthiambutene.
- 28 (kk) Difenoquin.
- 29 (ll) Dihydrocodeine.
- 30 (mm) Dimenoxadol.
- 31 (nn) Dimepheptanol.
- 32 (oo) Dimethylthiambutene.
- 33 (pp) Dioxaphetyl butyrate.
- 34 (qq) Diphenidine (DEP).
- 35 (rr) Diphenoxylate.
- 36 (ss) Dipipanone.
- 37 (tt) Ephenidine.
- 38 (uu) Ethylmethylthiambutene.
- 39 (vv) Etodesnitazene.
- 40 (ww) Etonitazene.
- 41 (xx) Etonitazepyne.
- 42 (yy) Etoxadine.
- 43 (zz) Fentanyl.
- 44 (aaa) Fentanyl mimetic substances that are any substances derived
- 45 from fentanyl by any substitution in the phenethyl group, any substitution
- 46 in the piperidine ring, any substitution in the aniline ring, any
- 47 replacement of the phenyl portion of the phenethyl group, any replacement
- 48 of the N-propionyl group or any combination of the above.
- 49 (bbb) Flunitazene.

1 (ccc) Furethidine.
2 (ddd) Hydroxypethidine.
3 (eee) Isoamidone (isomethadone).
4 (fff) Isophenidine.
5 (ggg) Isotonitazene.
6 (hhh) Pethidine (meperidine).
7 (iii) Ketobemidone.
8 ~~[(jjj) ANY MATERIAL, COMPOUND, MIXTURE OR PREPARATION THAT~~
9 ~~CONTAINS ANY QUANTITY OF SYNTHETIC 7-HYDROXYMITRAGYNINE, SYNTHETIC~~
10 ~~MITRAGYNINE, PSEUDOINDOXYL OR ANY OTHER SYNTHETICALLY DERIVED COMPOUND OF~~
11 ~~THE PLANT MITRAGYNA SPECIOSA]~~
12 [(iij) ~~{{KRATOM MEANS}}~~ ANY MATERIAL, COMPOUND, MIXTURE OR
13 PREPARATION THAT CONTAINS ANY OF THE FOLLOWING:
14 (i) AT LEAST ~~{{800}}~~ ~~{{EIGHT HUNDRED}}~~ PARTS PER MILLION OF 7-
15 HYDROXYMITRAGYNINE.
16 (ii) ANY QUANTITY OF SYNTHETIC 7-HYDROXYMITRAGYNINE, SYNTHETIC
17 MITRAGYNINE~~{{(-)}}{{OR}}~~ PSEUDOINDOXYL OR ANY OTHER SYNTHETICALLY DERIVED
18 COMPOUND OF THE PLANT MITRAGYNA SPECIOSA.]
19 ~~(jjjj)~~ (kkk) Lefetamine.
20 ~~(kkkk)~~ (lll) Levomethorphan.
21 ~~(llll)~~ (mmm) Levomoramide.
22 ~~(mmmm)~~ (nnn) Levophenacetylmorphan.
23 ~~(nnnn)~~ (ooo) Levorphanol.
24 ~~(oooo)~~ (ppp) Metazocine.
25 ~~(pppp)~~ (qqq) Methoxphenidine (MXP).
26 ~~(qqqq)~~ (rrr) 3-methylfentanyl.
27 ~~(rrrr)~~ (sss) 1-methyl-4-phenyl-4-propionoxypiperidine (MPPP).
28 ~~(ssss)~~ (ttt) 3-methylthiofentanyl.
29 ~~(tttt)~~ (uuu) Metodesnitazene.
30 ~~(uuuu)~~ (vvv) Metonitazene.
31 ~~(vvvv)~~ (www) Morpheridine.
32 ~~(wwww)~~ (xxx) Noracymethadol.
33 ~~(xxxx)~~ (yyy) Norlevorphanol.
34 ~~(yyyy)~~ (zzz) Normethadone.
35 ~~(zzzz)~~ (aaaa) Norpipanone.
36 ~~(aaaaa)~~ (bbbb) Opium.
37 ~~(bbbbb)~~ (cccc) Para-fluorofentanyl.
38 ~~(ccccc)~~ (dddd) Pentazocine.
39 ~~(ddddd)~~ (eeee) Phenadoxone.
40 ~~(eeeee)~~ (ffff) Phenampromide.
41 ~~(ffffff)~~ (gggg) Phenazocine.
42 ~~(ggggg)~~ (hhhh) 1-(2-phenethyl)-4-phenyl-4-acetoxypiperidine
43 (PEPAP).
44 ~~(hhhhh)~~ (iiii) Phenomorphan.
45 ~~(iiiii)~~ (jjjj) Phenoperidine.
46 ~~(jjjjj)~~ (kkkk) Piminodine.
47 ~~(kkkkk)~~ (llll) Piritramide.
48 ~~(lllll)~~ (mmmm) Proheptazine.
49 ~~(mmmmm)~~ (nnnn) Properidine.

1 ~~(nnnn)~~ (oooo) Propiram.
2 ~~(oooo)~~ (pppp) Protonitazene.
3 ~~(pppp)~~ (qqqq) Racemethorphan.
4 ~~(qqqq)~~ (rrrr) Racemoramide.
5 ~~(rrrr)~~ (ssss) Racemorphan.
6 ~~(ssss)~~ (tttt) Remifentanil.
7 ~~(tttt)~~ (uuuu) Sufentanil.
8 ~~(uuuu)~~ (vvvv) Thenylfentanyl.
9 ~~(vvvv)~~ (wwwv) Thiofentanyl.
10 ~~(wwwv)~~ (xxxx) Tilidine.
11 ~~(xxxx)~~ (yyyy) Tramadol, 2-[(dimethylamino)methyl]-1-(3-
12 methoxyphenyl) cyclohexanol, and its salts, optical and geometric isomers,
13 and its salts of isomers.
14 (yyyy) Trimeperidine.
15 21. "Opium" means any compound, manufacture, salt, isomer, salt of
16 isomer, derivative, mixture or preparation of the following, but does not
17 include apomorphine or any of its salts:
18 (a) Acetorphine.
19 (b) Acetyldihydrocodeine.
20 (c) Benzylmorphine.
21 (d) Codeine.
22 (e) Codeine methylbromide.
23 (f) Codeine-N-oxide.
24 (g) Cyprenorphine.
25 (h) Desomorphine.
26 (i) Dihydromorphine.
27 (j) Drotebanol.
28 (k) Ethylmorphine.
29 (l) Etorphine.
30 (m) Heroin.
31 (n) Hydrocodone.
32 (o) Hydromorphenol.
33 (p) Hydromorphone.
34 (q) Levo-alphaacetylmethadol.
35 (r) Methyldesorphine.
36 (s) Methyldihydromorphine.
37 (t) Metopon.
38 (u) Morphine.
39 (v) Morphine methylbromide.
40 (w) Morphine methylsulfonate.
41 (x) Morphine-N-oxide.
42 (y) Myrophine.
43 (z) Nalorphine.
44 (aa) Nicocodeine.
45 (bb) Nicomorphine.
46 (cc) Normorphine.
47 (dd) Oxycodone.
48 (ee) Oxymorphone.
49 (ff) Pholcodine.

1 (gg) Thebacon.

2 (hh) Thebaine.

3 22. "Ordinary ephedrine, pseudoephedrine, (-)-norpseudoephedrine or
4 phenylpropanolamine product" means a product that contains ephedrine,
5 pseudoephedrine, (-)-norpseudoephedrine or phenylpropanolamine and that is
6 all of the following:

7 (a) Approved for sale under the federal act.

8 (b) Labeled, advertised and marketed only for an indication that is
9 approved by the federal food and drug administration.

10 (c) Either:

11 (i) A nonliquid that is sold in package sizes of not more than
12 three grams of ephedrine, pseudoephedrine, (-)-norpseudoephedrine or
13 phenylpropanolamine and that is packaged in blister packs containing not
14 more than two dosage units or, if the use of blister packs is technically
15 infeasible, that is packaged in unit dose packets or pouches.

16 (ii) A liquid that is sold in package sizes of not more than three
17 grams of ephedrine, pseudoephedrine, (-)-norpseudoephedrine or
18 phenylpropanolamine.

19 23. "Peyote" means any part of a plant of the genus *lophophora*,
20 known as the mescal button.

21 24. "Pharmacy" means a licensed business where drugs are compounded
22 or dispensed by a licensed pharmacist.

23 25. "Practitioner" means a person licensed to prescribe and
24 administer drugs.

25 26. "Precursor chemical I" means any material, compound, mixture or
26 preparation which contains any quantity of the following substances and
27 their salts, optical isomers or salts of optical isomers:

28 (a) N-acetylanthranilic acid.

29 (b) Anthranilic acid.

30 (c) Ephedrine.

31 (d) Ergotamine.

32 (e) Isosafrole.

33 (f) Lysergic acid.

34 (g) Methylamine.

35 (h) N-ethylephedrine.

36 (i) N-ethylpseudoephedrine.

37 (j) N-methylephedrine.

38 (k) N-methylpseudoephedrine.

39 (l) Norephedrine.

40 (m) (-)-Norpseudoephedrine.

41 (n) Phenylacetic acid.

42 (o) Phenylpropanolamine.

43 (p) Piperidine.

44 (q) Pseudoephedrine.

45 27. "Precursor chemical II" means any material, compound, mixture
46 or preparation which contains any quantity of the following substances and
47 their salts, optical isomers or salts of optical isomers:

48 (a) 4-cyano-2-dimethylamino-4, 4-diphenyl butane.

49 (b) 4-cyano-1-methyl-4-phenylpiperidine.

- 1 (c) Chlorephedrine.
- 2 (d) Chlorpseudoephedrine.
- 3 (e) Ethyl-4-phenylpiperidine-4-carboxylate.
- 4 (f) 2-methyl-3-morpholino-1, 1-diphenylpropane-carboxylic acid.
- 5 (g) 1-methyl-4-phenylpiperidine-4-carboxylic acid.
- 6 (h) N-formyl amphetamine.
- 7 (i) N-formyl methamphetamine.
- 8 (j) Phenyl-2-propanone.
- 9 (k) 1-piperidinocyclohexane carbonitrile.
- 10 (l) 1-pyrrolidinocyclohexane carbonitrile.

11 28. "Prescription-only drug" does not include a dangerous drug or
12 narcotic drug but means:

13 (a) Any drug which because of its toxicity or other potentiality
14 for harmful effect, or the method of its use, or the collateral measures
15 necessary to its use, is not generally recognized among experts, qualified
16 by scientific training and experience to evaluate its safety and efficacy,
17 as safe for use except by or under the supervision of a medical
18 practitioner.

19 (b) Any drug that is limited by an approved new drug application
20 under the federal act or section 32-1962 to use under the supervision of a
21 medical practitioner.

22 (c) Every potentially harmful drug, the labeling of which does not
23 bear or contain full and adequate directions for use by the consumer.

24 (d) Any drug required by the federal act to bear on its label the
25 legend "Caution: Federal law prohibits dispensing without prescription"
26 or "Rx only".

27 29. "Produce" means grow, plant, cultivate, harvest, dry, process
28 or prepare for sale.

29 30. "Regulated chemical" means the following substances in bulk
30 form that are not a useful part of an otherwise lawful product:

- 31 (a) Acetic anhydride.
- 32 (b) Hypophosphorous acid.
- 33 (c) Iodine.
- 34 (d) Sodium acetate.
- 35 (e) Red phosphorus.
- 36 (f) Gamma butyrolactone (GBL).
- 37 (g) 1, 4-butanediol.
- 38 (h) Butyrolactone.
- 39 (i) 1, 2 butanolide.
- 40 (j) 2-oxanalone.
- 41 (k) Tetrahydro-2-furanone.
- 42 (l) Dihydro-2(3H)-furanone.
- 43 (m) Tetramethylene glycol.

44 31. "Retailer" means either:

45 (a) A person other than a practitioner who sells any precursor
46 chemical or regulated chemical to another person for purposes of
47 consumption and not resale, whether or not the person possesses a permit
48 issued pursuant to title 32, chapter 18.

1 (b) A person other than a manufacturer or wholesaler who purchases,
2 receives or acquires more than twenty-four grams of a precursor chemical.

3 32. "Sale" or "sell" means an exchange for anything of value or
4 advantage, present or prospective.

5 33. "Sale for personal use" means the retail sale for a legitimate
6 medical use in a single transaction to an individual customer, to an
7 employer for dispensing to employees from first aid kits or medicine
8 chests or to a school for administration pursuant to section 15-344.

9 34. "Scientific purpose" means research, teaching or chemical
10 analysis.

11 35. "Suspicious transaction" means a transaction to which any of
12 the following applies:

13 (a) A report is required under the federal act.

14 (b) The circumstances would lead a reasonable person to believe
15 that any person is attempting to possess a precursor chemical or regulated
16 chemical for the purpose of unlawful manufacture of a dangerous drug or
17 narcotic drug, based on such factors as the amount involved, the method of
18 payment, the method of delivery and any past dealings with any
19 participant.

20 (c) The transaction involves payment for precursor or regulated
21 chemicals in cash or money orders in a total amount of more than \$200.

22 (d) The transaction involves a sale, a transfer or furnishing to a
23 retailer for resale without a prescription of ephedrine, pseudoephedrine,
24 (-)-norpseudoephedrine or phenylpropanolamine that is not an ordinary
25 ephedrine, pseudoephedrine, (-)-norpseudoephedrine or phenylpropanolamine
26 product.

27 36. "Threshold amount" means a weight, market value or other form
28 of measurement of an unlawful substance as follows:

29 (a) One gram of heroin.

30 (b) Nine grams of cocaine, including hydrolyzed cocaine.

31 (c) Four grams or 50 milliliters of PCP.

32 (d) Nine grams of methamphetamine, including methamphetamine in
33 liquid suspension.

34 (e) Nine grams of amphetamine, including amphetamine in liquid
35 suspension.

36 (f) One-half milliliter of lysergic acid diethylamide, or in the
37 case of blotter dosage units fifty dosage units.

38 (g) Two pounds of marijuana.

39 (h) Nine grams of fentanyl or fentanyl mimetic substances.

40 (i) For any combination consisting solely of those unlawful
41 substances listed in subdivisions (a) through (h) of this paragraph, an
42 amount equal to or in excess of the threshold amount, as determined by the
43 application of section 13-3420.

44 (j) For any unlawful substance not listed in subdivisions (a)
45 through (h) of this paragraph or any combination involving any unlawful
46 substance not listed in subdivisions (a) through (h) of this paragraph, a
47 value of at least \$1,000.

48 37. "Transfer" means furnish, deliver or give away.

1 38. "Vapor-releasing substance containing a toxic substance" means
2 a material which releases vapors or fumes containing any of the following:
3 (a) Ketones, including acetone, methyl ethyl ketone, mibk, miak,
4 isophorone and mesityl oxide.
5 (b) Hydrocarbons, including propane, butane, pentane, hexane,
6 heptane and halogenated hydrocarbons.
7 (c) Ethylene dichloride.
8 (d) Pentachlorophenol.
9 (e) Chloroform.
10 (f) Methylene chloride.
11 (g) Trichloroethylene.
12 (h) Difluoroethane.
13 (i) Tetrafluoroethane.
14 (j) Aldehydes, including formaldehyde.
15 (k) Acetates, including ethyl acetate and butyl acetate.
16 (l) Aromatics, including benzene, toluene, xylene, ethylbenzene and
17 cumene.
18 (m) Alcohols, including methyl alcohol, ethyl alcohol, isopropyl
19 alcohol, butyl alcohol and diacetone alcohol.
20 (n) Ether, including Diethyl ether and petroleum ether.
21 (o) Nitrous oxide.
22 (p) Amyl nitrite.
23 (q) Isobutyl nitrite.
24 39. "Weight" unless otherwise specified includes the entire weight
25 of any mixture or substance that contains a detectable amount of an
26 unlawful substance. If a mixture or substance contains more than one
27 unlawful substance, the weight of the entire mixture or substance is
28 assigned to the unlawful substance that results in the greater offense. If
29 a mixture or substance contains lysergic acid diethylamide, the offense
30 that results from the unlawful substance shall be based on the greater
31 offense as determined by the entire weight of the mixture or substance or
32 the number of blotter dosage units. For the purposes of this paragraph,
33 "mixture" means any combination of substances from which the unlawful
34 substance cannot be removed without a chemical process.
35 40. "Wholesaler" means a person who in the usual course of business
36 lawfully supplies narcotic drugs, dangerous drugs, precursor chemicals or
37 regulated chemicals that he himself has not produced or prepared, but not
38 to a person for the purpose of consumption by the person, whether or not
39 the wholesaler has a permit that is issued pursuant to title 32,
40 chapter 18. Wholesaler includes a person who sells, delivers or dispenses
41 a precursor chemical in an amount or under circumstances that would
42 require registration as a distributor of precursor chemicals under the
43 federal act.
44 Sec. 2. Section 36-795, Arizona Revised Statutes, is amended to
45 read:
46 36-795. Definitions
47 In this article, unless the context otherwise requires:

1 ~~1. "Food" means a food as defined in section 36-901, food product,~~
2 ~~food ingredient, dietary ingredient, dietary supplement or beverage for~~
3 ~~human consumption.~~
4 1. "KRATOM" MEANS THE PLANT OR ANY PART OF THE PLANT MITRAGYNA
5 SPECIOSA.
6 2. "Kratom product" means ~~a food~~ ANY product ~~or dietary ingredient~~
7 ~~containing any part of the leaf of the plant mitragyna speciosa~~ THAT IS
8 MADE FROM KRATOM AND THAT IS MADE TO BE INGESTABLE OR INHALABLE.
9 ~~3. "Processor" means a person that sells, prepares, manufactures,~~
10 ~~distributes, wholesales or maintains kratom products or that advertises,~~
11 ~~represents or holds itself out as selling, preparing or maintaining kratom~~
12 ~~products.~~
13 ~~4. "Retailer" means a person that sells or distributes kratom~~
14 ~~products or that advertises, represents or holds itself out as selling or~~
15 ~~maintaining kratom products.~~
16 Sec. 3. Repeal
17 Section 36-795.01, Arizona Revised Statutes, is repealed.
18 Sec. 4. Title 36, chapter 6, article 10, Arizona Revised Statutes,
19 is amended by adding a new section 36-795.01, to read:
20 36-795.01. Kratom products; labeling required
21 ANY KRATOM PRODUCT THAT IS OFFERED FOR SALE OR SOLD IN THIS STATE
22 MUST INCLUDE A LABEL OR CONSUMER SCANNABLE QUICK RESPONSE CODE OR SIMILAR
23 TECHNOLOGY THAT PROVIDES ALL OF THE FOLLOWING:
24 1. THE INGREDIENTS OF THE KRATOM PRODUCT.
25 2. THE QUANTITY OF MITRAGYNINE OR 7-HYDROXYMITRAGYNINE IN THE
26 KRATOM PRODUCT.
27 3. THE RECOMMEND SERVICING SIZE OF THE KRATOM PRODUCT.
28 4. THE NUMBER OF SERVINGS IN THE KRATOM PRODUCT.
29 Sec. 5. Section 36-795.02, Arizona Revised Statutes, is amended to
30 read:
31 36-795.02. Prohibited manufacture, distribution and sales;
32 minimum age
33 ~~[A.—A] processor or retailer [PERSON may not prepare, MANUFACTURE,~~
34 ~~distribute, TRANSPORT, OFFER FOR SALE OR sell] or expose for sale any of~~
35 ~~the following:~~
36 ~~1. A kratom product that is adulterated with a dangerous nonkratom~~
37 ~~substance. A kratom product is adulterated with a dangerous nonkratom~~
38 ~~substance if the kratom product is mixed or packed with a nonkratom~~
39 ~~substance and that substance affects the quality or strength of the kratom~~
40 ~~product to such a degree as to render the kratom product injurious to a~~
41 ~~consumer.~~
42 ~~2. A kratom product that is contaminated with a dangerous nonkratom~~
43 ~~substance. A kratom product is contaminated with a dangerous nonkratom~~
44 ~~substance if the kratom product contains a poisonous or otherwise~~
45 ~~deleterious nonkratom substance, including any controlled substance~~
46 ~~prescribed by chapter 27 of this title or rules adopted pursuant to~~
47 ~~chapter 27 of this title.~~
48 ~~3. [a kratom product] containing a level of [IN THIS STATE THAT~~
49 ~~CONTAINS MORE THAN FOUR HUNDRED PARTS PER MILLION 7-hydroxymitragynine] in~~

1 ~~the alkaloid fraction that is greater than two percent of the alkaloid~~
2 ~~composition of the product~~ [ON A DRY-WEIGHT BASIS.]

3 ~~4. A kratom product containing any synthetic alkaloid, including~~
4 ~~synthetic mitragynine, synthetic 7-hydroxymitragynine or any other~~
5 ~~synthetically derived compounds of the kratom plant.~~

6 ~~5. Any kratom-containing product that does not include on its~~
7 ~~package or label the amount of mitragynine and 7-hydroxymitragynine~~
8 ~~contained in the product.~~

9 ~~[B.]~~ A ~~processor or retailer~~ PERSON may not ~~PREPARE, MANUFACTURE,~~
10 ~~distribute, TRANSPORT, OFFER FOR SALE OR~~ sell ~~or expose for sale~~ a kratom
11 product to an individual who is under ~~eighteen~~ TWENTY-ONE years of age.

12 Sec. 6. Section 36-795.03, Arizona Revised Statutes, is amended to
13 read:

14 36-795.03. Enforcement; violations; classification

15 ~~{{A. In addition to the violations and remedies specified in this~~
16 ~~section, violations and enforcement of this article are governed by~~
17 ~~chapter 8 of this title.}}~~

18 ~~{{B.}}~~ ~~{{A.}}~~ A ~~processor or retailer that~~ PERSON WHO violates
19 section 36-795.01, ~~subsection B or section 36-795.02~~ is guilty of a class
20 2 misdemeanor.

21 ~~{{C.}}~~ ~~{{B.}}~~ A PERSON WHO VIOLATES SECTION 36-795.02 IS GUILTY OF
22 A CLASS ~~[3]~~ [1] MISDEMEANOR.

23 ~~{{D.}}~~ ~~{{C.}}~~ A PERSON WHO COMMITS A SECOND OR SUBSEQUENT VIOLATION
24 OF SECTION 36-795.02 WITHIN TWENTY-FOUR MONTHS IS GUILTY OF A CLASS 6
25 FELONY.]

26 ~~C.~~ ~~D.~~ ~~[{{E.}}]~~ ~~[{{D.}}]~~ In addition to and distinct from any other
27 remedy at law or equity, a person WHO IS aggrieved by a violation of
28 section 36-795.01, ~~subsection B~~ or ~~section 36-795.02, subsection A~~ may
29 bring a private cause of action in a court of competent jurisdiction for
30 damages resulting from that violation, including economic, noneconomic or
31 consequential damages.

32 ~~D.~~ ~~[E. A]~~ ~~processor or retailer~~ ~~[PERSON does not violate section~~
33 ~~36-795.01], subsection B [or] section [36-795.02], subsection A [if the~~
34 ~~court finds by a preponderance of the evidence that the processor or~~
35 ~~retailer relied in good faith on the representation of a manufacturer,~~
36 ~~packer or distributor that the food was a kratom product.]~~

37 ~~Sec. 7.~~ Title 36, chapter 6, article 10, Arizona Revised
38 Statutes, is amended by adding section 36-795.04, to read:

39 36-795.04. Kratom products; packaging; advertising; warning;
40 enforcement

41 {{A. A PERSON WHO SELLS KRATOM PRODUCTS MAY NOT:

42 1. PACKAGE OR LABEL ANY KRATOM PRODUCT IN A FALSE OR MISLEADING
43 MANNER.

44 2. ADVERTISE KRATOM OR KRATOM PRODUCTS, INCLUDING KRATOM
45 PARAPHERNALIA, TO INDIVIDUALS WHO ARE UNDER TWENTY-ONE YEARS OF AGE,
46 INCLUDING ADVERTISING:

47 (a) WITH NAMES THAT RESEMBLE OR IMITATE FOOD OR DRINK BRANDS THAT
48 ARE MARKETED TO CHILDREN.

1 (b) WITH IMAGES OR LIKENESSES OF TOYS, CARTOONS OR ANIMATED OR
2 FICTIONAL CHARACTERS, INCLUDING SANTA CLAUS, THAT ARE DESIGNED TO APPEAL
3 TO OR ENCOURAGE INDIVIDUALS WHO ARE UNDER TWENTY-ONE YEARS OF AGE TO
4 CONSUME KRATOM OR KRATOM PRODUCTS.

5 (c) IN A MEDIUM THAT SPECIFICALLY APPEALS TO INDIVIDUALS WHO ARE
6 UNDER TWENTY-ONE YEARS OF AGE SUCH THAT THE ADVERTISING HAS A SPECIAL
7 ATTRACTIVENESS TO INDIVIDUALS WHO ARE UNDER TWENTY-ONE YEARS OF AGE BEYOND
8 GENERAL ATTRACTIVENESS FOR INDIVIDUALS WHO ARE AT LEAST TWENTY-ONE YEARS
9 OF AGE.

10 3. ADVERTISE ANY HEALTH-RELATED STATEMENT OR STATEMENT REGARDING
11 THE EFFECTS OF KRATOM CONSUMPTION ON HEALTH THAT IS KNOWN TO BE
12 UNTRUE. ANY ADVERTISING UNDER THIS ARTICLE INVOLVING DIRECT,
13 INDIVIDUALIZED COMMUNICATION OR DIALOGUE SHALL USE A METHOD OF AGE
14 AFFIRMATION TO VERIFY THAT THE RECIPIENT IS AT LEAST TWENTY-ONE YEARS OF
15 AGE BEFORE ENGAGING IN THE COMMUNICATION OR DIALOGUE. FOR THE PURPOSES OF
16 THIS SUBSECTION, THE METHOD OF AGE AFFIRMATION MAY INCLUDE USER
17 CONFIRMATION, BIRTH DATE DISCLOSURE OR OTHER SIMILAR REGISTRATION METHODS.

18 B. AN INDIVIDUAL OR ENTITY THAT VIOLATES THIS SECTION, ON
19 NOTIFICATION BY THE DEPARTMENT OR THE ATTORNEY GENERAL'S OFFICE, HAS
20 FOURTEEN DAYS TO COMPLY WITH THE REQUIREMENTS OF THIS SECTION.

21 C. THIS SECTION SHALL BE ENFORCED BY THE ATTORNEY GENERAL.}} >>

22 Enroll and engross to conform

23 Amend title to conform

QUANG H. NGUYEN

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